

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Aminul Islam

Criminal Miscellaneous Case No.9328 of 2023

Sobahan Mollah

.... Accused-Petitioner

-Versus-

The State and another

.... Opposite Parties

Mr. Md. Kamruzzaman with

Mr. Md. Nazmul Huda and

Ms. Keya Sen, Advocates

.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Mr. Munshi Abdul Hamid, Advocate

.... For the opposite party No.2.

Heard and Judgment on 12.12.2023.

S M Kuddus Zaman, J:

On an application under section 561A of the Code of Criminal Procedure this Rule was issued calling upon the opposite parties to show cause as to why the proceeding of Nari-O-Shishu Case No.136 of 2022 arising out of Petition Case No.110

of 2021 under Sections 11(Ga) of the Nari-O-Shishu Nirjatan Daman Ain, 2000 (Amendment 2003), now pending in the Court of Nari-O-Shishu Nirjatan Daman Tribunal No.3, Khulna should be quashed and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that the opposite party No.2 as complainant lodged this complaint under Sections 11(Ga)/30 of the Nari-O-Shishu Nirjatan Daman Ain, 2000 to the Nari-O-Shishu Nirjatan Tribunal, Khulna alleging that the accused married her by a registered kabinnama dated 12.05.2020. He demanded a dowry of Tk.20,00,000/-(twenty lac) and her father paid Tk.10,00,000/-(ten lac) to the accused but the accused subjected the petitioner to physical assaults and attempted to commit murder by strangulation on 27.09.2021 demanding the payment of remaining Tk.10,00,000/-(ten lac).

The learned Judge of the Nari-O-Shishu Nirjatan Daman Tribunal examined the complainant and sent the complaint for enquiry by a Councilor of the Khulna City Corporation who on

conclusion of inquiry submitted a report alleging that no truth in above allegations was found.

Against above inquiry report the complainant submitted a Naraji petition which was accepted and the case was sent for further enquiry by the Police Bureau of Inquiry who on conclusion of further inquiry submitted a report alleging that there was no truth in the allegation of demand of dowry against the accused person. But allegations punishable under Sections 323 and 307 of the Penal Code were proved.

On consideration submissions of the learned Advocates for the respective parties and materials on record the learned Judge of the Tribunal took cognizance against the petitioner under Section 11(Ga) of the Nari-O-Shishu Nirjatan Ain, 2000 on 13.09.2022 and framed charge against the accused petitioner under above provision of the Nari-O-Shishu Nirjatan Daman Ain, 2000 on 27.11.2022.

Being aggrieved by above order of the learned Judge of the Nari-O-Shishu Nirjatan Daman Tribunal the accused as petitioner moved to this Court and obtained the Rule.

Mr. Md. Kamruzzaman, learned Advocate for the petitioner submits that the learned Judge of the Nari-O-Shishu Nirjatan Tribunal No.3 directed for inquiry of the complaint by a Councilor of Khulna City Corporation who on conclusion of the inquiry found no truth in the allegation. The learned Judge of the Tribunal on receipt of above report could take cognizance against the accused after assigning reason. But instead the learned Judge directed PBI for a second inquiry on the basis of a naraji petition of the complainant which was beyond the mandate of the Nari-O-Shishu Nirjatan Daman Ain, 2000. On Conclusion of investigation PBI submitted a report stating that above allegations were not true. In both above inquiry reports it was also mentioned that the complainant did not go to the police station to lodge her complaint. As such the learned Judge of the Tribunal committed serious illegality in taking cognizance and framing charge against the petitioner without assigning any reason which has made the whole proceeding still born and unlawful and liable to be quashed.

On the other hand Mr. Munshi Abdul Hamid, learned Advocate for the complainant opposite party No.2 submits that the learned Judge of the Tribunal on examination of the complaint, two inquiry reports and other materials on record has rightly taken cognizance and framed charge against the accused under Section 11(Ga) of the Nari-O-Shishu Nirjaton Daman Ain, 2000 which calls for no interference. The learned Advocate further submits that in the second report submitted by the PBI it has been clearly mentioned that the allegations which are punishable under Sections 323 and 307 of the Penal Code were found to be true. As such the complainant should be given an opportunity so that he can approach appropriate criminal Court for taking appropriate measures against the accused under Sections 323 and 307 of the Penal Code.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

The Nari-O-Shishu Nirjatan Daman Ain, 2000 is a special law. Section 27 of the Nari-O-Shishu Nirjatan Daman Ain, 2000

provides the procedure for taking of cognizance on the basis of a complaint or First Information Report by the Judge of the Tribunal. As far as taking of cognizance on the basis of a complaint is concerned it has been stated that after examination of the complainant if the Judge of the Tribunal is satisfied then he shall send the complaint for inquiry and on receipt of the inquiry report the Judge of the Tribunal can take cognizance irrespective of the outcome of inquiry report. If the inquiry report does not find any truth in the allegations made in the complaint even then the learned Judge can take cognizance after assigning reason in accordance with the provision of Sections 27(1)(1Ga), which provides as follows:

“উপ-ধারা (১) এবং (১ক) এর অধীন প্রাপ্ত রিপোর্টে কোন ব্যক্তির বিরুদ্ধে অপরাধ সংঘটনের অভিযোগ বা ততসম্পর্কে কার্যক্রম গ্রহণের সুপারিশ না থাকা সত্ত্বেও ট্রাইবুনাল যথাযথ এবং ন্যায়বিচারের স্বার্থে প্রয়োজনীয় মনে করিলে কারণ উল্লেখপূর্বক উক্ত ব্যক্তির ব্যাপারে সংশ্লিষ্ট অপরাধ বিচারার্থ গ্রহণ করিতে পারিবেন।”

The Nari-O-Shishu Nirjatan Daman Ain, 2000 is a special law. It has been clearly stated in above reproduced provision of the Ain that a Judge of the Tribunal can take cognizance against

an accused disregarding the inquiry report. But in that case the learned Judge must assign the reasons or the causes for disregarding inquiry report and taking cognizance. Above provision is a mandatory provision of law and the Judge of the Tribunal must comply with this provision.

In this case the learned Judge of the Tribunal ordered for inquiry of the allegations made in the complaint twice, first by a Councilor of the Khulna City Corporation and secondly by the Police Bureau of Investigation. In both above inquiries no truth was found in the allegations made in the complainant that the petitioner-accused subjected her to physical assaults on demand of dowry. It turns out from the impugned order of taking of cognizance dated 13.09.2022 that the learned Judge has taken cognizance against the petitioner disregarding above inquiry reports without assigning any reason or cause at all.

Since the learned Judge of the Tribunal did not assign any reason or cause for disregarding two inquiry reports and taking cognizance against the petitioner above taking of cognizance against the petitioner was unlawful. Since the taking of

cognizance of the case was unlawful the subsequent framing of charge and recording of evidence all are unlawful as well.

As far as the submissions of the learned Advocate for the complainant-opposite party No.2 that in the second inquiry report allegations punishable under Sections 323 and 307 of the Penal Code were found to be true are concerned the complainant-opposite party No.2 is at liberty to approach to the appropriate Criminal Court to redress her grievance about above allegation.

In above view of the materials on record we hold that this is a still bonn case and further proceeding of the same will bring unnecessary plight and sufferings for the petitioner but the same shall not meet the ends of justice.

We find substance in this petition under Section 561A of the Code of Criminal Procedure and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is hereby made absolute.

The proceeding of Nari-O-Shishu Case No.136 of 2022 arising out of Petition Case No.110 of 2021 under Sections 11(Ga) of the Nari-O-Shishu Nirjatan Daman Ain, 2000 (Amendment

2003), now pending in the Court of Nari-O-Shishu Nirjatan Daman Tribunal No.3, Khulna is hereby quashed.

Communicate this judgment and order to the Court concerned at once.

Md. Aminul Islam, J:

I agree.

MD. MASUDUR RAHMAN
BENCH OFFICER